

Court No. - 32

Case :- WRIT - C No. - 38711 of 2011

Petitioner :- Sanjay Kumar Upadhyaya

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Ashwani Kumar Mishra

Respondent Counsel :- Rajesh Tripathi

Hon'ble Sunil Ambwani,J.

Hon'ble Pankaj Mithal,J.

Put up on 1st August, 2011 in the additional cause list. In the meantime, Shri S.K. Upadhyay appearing for the respondents will seek instructions. He will find out whether any provisional assessment was made inviting objections before final assessment order was served in theft case.

Order Date :- 15.7.2011

SP/

Court No. - 2

Case :- WRIT - C No. - 38711 of 2011

Petitioner :- Sanjay Kumar Upadhyaya

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Ashwani Kumar Mishra

Respondent Counsel :- Rajesh Tripathi, S.C., S.K. Upadhyay

Hon'ble Ashok Bhushan, J.

Hon'ble Bharati Sapru, J.

Sri S.K. Upadhyay appears on behalf of respondents no.1, 2 and 3. Issue notice to respondent no.4 and 5. Petitioner will take step in office within a week.

Learned counsel for the petitioner submits that respondent no.4 is not authorized under the provision of U.P. Electricity Supply Code, 2005 to make assessment of electricity theft. He refers to clause 7.3 (I) of the Code aforesaid. Prima facie the submissions made by the petitioner makes out a case for grant of interim relief.

Let a counter affidavit be filed within four weeks and list thereafter.

In the meantime no further action shall be taken in pursuance of assessment dated 31.7.2010 (Annexure 1 to the writ petition).

Order Date :- 1.8.2011

rk

Court No. - 21

Case :- WRIT - C No. - 38711 of 2011

Petitioner :- Sanjay Kumar Upadhayaya

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Ashwani Kumar Mishra

Respondent Counsel :- Rajesh Tripathi, Manish Tiwary, S.C., S.K. Upadhyay

Hon'ble Yatindra Singh, J.

Hon'ble Mahendra Dayal, J.

1. In view of the fact that we have modified the interim order in the leading writ petition, the interim order passed in this writ petition is also confirmed subject to the modification that the further proceeding in pursuance of the provisional assessment notice shall remain stayed provided the petitioner files a bank guarantee of half of the amount, mentioned in the provisional bill before the concerned Executive Engineer of the Dakshinanchal Vidyut Vitran Nigam Ltd. within a period of three weeks. In case the bank guarantee is not filed within the period of three weeks then the interim order shall stand automatically vacated.
2. In case, the writ petition is dismissed, bank guarantee will be transferred to M/s. Torrent Power Limited. The bank guarantee may be realised only after the provisional bill is finalised and in case the final amount due is found to be more than the bank guarantee submitted.
3. It is also clarified that the petitioner shall continue to pay all future charges as and when fall due.

Order Date :- 26.9.2012

vs

Court No. - 29

Case :- WRIT - C No. - 38711 of 2011

Petitioner :- Sanjay Kumar Upadhyaya

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Ashwani Kumar Mishra, Digvijay Singh, Vikas Srivastava

Counsel for Respondent :- Rajesh Tripathi, Manish Tiwary, S.C., S.K. Upadhyay

Hon'ble Pritinker Diwaker, J.

Hon'ble Ashutosh Srivastava, J.

Order on Withdrawal Application:

Counsel for the petitioner/applicant prays for withdrawal of this writ petition.

Application is allowed.

Petition is dismissed, as withdrawn.

Order Date :- 2.12.2021

RKK/-